

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Robert E. Blackburn**

Date: June 27, 2011

Deputy Clerk: Nel Steffens
Court Reporter: Suzanne Claar

Civil Action No. 09-cv-02977-REB-KLM

Parties:

IOWA PACIFIC HOLDINGS, LLC,

Plaintiff,

Counsel:

Robert Smeltzer
Brian Orr

v.

NATIONAL RAILROAD PASSENGER
CORPORATION,

Defendant.

Daniel Dunn
David DeMarco

COURTROOM MINUTES

Trial to Jury - Day One

8:43 a.m. Court in session.

Jury panel is present; 15 jurors have been seated in the jury box prior to the Court calling the case.

8:44 a.m. Civil voir dire oath given to jury panel. Voir dire by court commences.

Opening statements by the Court.

8:49 a.m. Mr. Smeltzer introduces himself, Mr. Orr and Daniel Marko, general counsel for the plaintiff.

8:50 a.m. Mr. Dunn introduces himself; Mr. DeMarco; Rob Corl, in-house counsel for the defendant; Dana Catt, paralegal; and Diarmud Truax, technology

coordinator.

8:51 a.m. Court introduces court staff; voir dire continues.

Challenge for Cause by Court:

1. 100167761

10:11 a.m. Court in recess.

10:25 a.m. Court in session.

Jury panel is present.

10:25 a.m. Voir dire by Mr. Smeltzer.

10:44 a.m. Voir dire by Mr. Dunn.

10:56 a.m. - 10:58 a.m. Bench conference.

Peremptory Challenges by Plaintiff:

1. #100187176
2. #100177630
3. #100166161

Peremptory Challenges by Defendants:

1. #100161945
2. #100169637
3. #100162083

11:07 a.m. Civil jury oath administered.

Nine Jurors Sworn to Try the Case:

1. #100178777
2. #100177950
3. #100199362
4. #100166254
5. #100182227
6. #100161627
7. #100163648
8. #100167544
9. #100167383

11:15 a.m. Court in recess.

11:40 a.m. Court in session.

Jury is present.

Court gives jury preliminary instructions.

Court's sequestration order is in effect.

11:57 p.m. Court in recess.

1:20 p.m. Court in session.

Jury is present.

1:20 p.m. Opening statement by Mr. Smeltzer.

2:00 p.m. Opening statement by Mr. Dunn.

2:39 p.m. Court in recess.

3:02 p.m. Court in session.

Jury is present.

Court notes that many exhibits are stipulated and are admitted at this time.

Stipulated Exhibits Admitted: 1, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 31, 32, 33, 34, 35, 37, 38, 39, 40, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 57, 58, 59, 60, 61, 63, 64, 65, 66, 67, 68, 69, 70, 71, 72, 73, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 89, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, 103, 104, 106, 107, 108, 109, 110, 112, 113, 114, 115, 117, 119, 120, 121, 123, 124, 125, 126, 127, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 139, 140, 141, 141, 142, 143, 144, 147, 148, 149, 150, 151, 152, 153, 154, 155, 156, 158, 161, 162, 166, 169, 171, 173, 174, 193, 194, 195, 198, 202, 203, 204, 205, 208, 210, 212, 213

3:03 p.m. Plaintiff's witness, Edwin Ellis, called and sworn.

Direct examination by Mr. Smeltzer.

4:05 p.m. Court in recess.

4:22 p.m. Court in session.

Jury is present.

Witness Ellis has resumed the witness stand.

Continued direct examination by Mr. Smeltzer.

4:47 p.m. Court advises jurors regarding admonitions of trial. Trial will resume tomorrow at 8:30 a.m.

4:50 p.m. Court in recess.

Total time in court: 05:25

Trial continued.